

		nor do they arise wholly from Defendants filing their lawsuit. Thus, Defendants have failed to establish the first prong and their motion fails. <u>Attorney's Fees</u> "If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." (Code Civ. Proc., § 425.16(c)(1).) The Court finds Defendants had a good faith argument that their claims were more similar to <i>Equilon</i> and <i>CKE</i> than <i>Cotati</i> and, thus, the Motion was not frivolous or filed solely for the purpose of delay. The delay in discovery was incidental or merely one factor contributing to the filing of the Motion. Therefore, Plaintiffs' request attorney's fees is denied.
7	25-01524396 <i>Livers vs. Beamer</i>	Motion to Set Aside/Vacate Default Defendant Tyson Beamer's Motion to Set Aside Default is MOOT in light of this Court signing the parties' stipulation to set aside default.
8	20-01146344 <i>Mena vs. 3711 West Balboa Blvd Homeowners' Association</i>	Motion for Attorney Fees Plaintiff's Motion for Post-Judgment Attorney Fees and Costs on Appeal against Defendant Christopher P. Schroeder is GRANTED. <u>Procedural History:</u> This Court entered judgment on the arbitration award in favor of Plaintiff against Defendant Schroeder on 1/30/24. The judgment included monetary damages and non-monetary relief and provided interest of 10% per annum would accrue until the judgment was paid. Defendant appealed and the appellate court issued an opinion affirming the judgment on 12/4/25. The appellate court stated Plaintiff is "to recover her costs (including attorney fees) incurred on appeal. The trial court is directed to award [Plaintiff] <i>all</i> reasonable fees and costs on appeal." (Opinion, p. 19, emphasis in original.) The opinion directed this Court to "award [Plaintiff] all reasonable attorney fees and costs incurred on appeal including but not limited to those fees incurred responding to this court's order regarding sanctions, and those fees incurred after this opinion is filed." (Id. at p. 18.) Plaintiff now moves for an order that Defendant Schroeder pay (1) attorney fees on appeal totaling \$49,648.50, (2) costs of \$729.25, (3) post-judgment interest of \$35,997.76, and (4) fees incurred in related bankruptcy proceedings totaling \$41,101.00. <u>Legal Standard:</u> A party seeking an award of fees has the burden of establishing entitlement to an award, and of documenting the appropriate hours